BOARD OF ETHICS
OF THE CITY OF PHILADELPHIA

J. Shane Creamer, Jr.	:
Executive Director	:
Board of Ethics	:
of the City of Philadelphia	:
1515 Arch Street, 18th Floor	:
Philadelphia, PA 19102	:
	: **Matter No:** 2510ET21
v.	:
Otis Bullock	: **Date of Issuance & Mailing:** April 24, 2026
[redacted]	:
	:
otisbullock@gpca-phila.org	:

ORDER

For the reasons stated in the accompanying Final Determination, the Board of Ethics hereby imposes a civil monetary penalty of $1,000 to be paid within thirty (30) days of the date of issuance and mailing of the Final Determination and this Order. Payment shall be by check or money order made payable to the City of Philadelphia and delivered to the Board's office at the following address:

City of Philadelphia Board of Ethics
One Parkway Building
1515 Arch Street, 18th Floor
Philadelphia, PA 19102

The Board's Final Determination and this Order shall be the final agency action.

BY THE PHILADELPHIA BOARD OF ETHICS

/s/ Ellen Mattleman Kaplan

Ellen Mattleman Kaplan, Esq., Acting Chair
Hon. Nelson A. Diaz (Ret.), Member
Jim Engler, Esq., Member
Wesley R. Payne, IV, Esq., Member

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FINAL DETERMINATION

On October 6, 2025, the Executive Director of the Board of Ethics initiated an administrative enforcement proceeding against Respondent Otis Bullock alleging that Respondent did not file timely a Statement of Financial Interest in violation of Philadelphia Code Section 20-610 and Board Regulation No. 3. Respondent waived his right to a hearing. This Final Determination constitutes the Board's adjudication of the matter on the administrative record. As described in more detail herein, we find that Respondent committed a single violation of the financial disclosure filing requirement and impose a penalty of $1,000.

I. JURISDICTION

Philadelphia Home Rule Charter Section 4-1100 provides that the Board of Ethics "shall administer and enforce all provisions of this Charter and ordinances pertaining to ethical matters," including the City's Ethics Code, which is set forth at Philadelphia Code Chapter 20-600 and includes, at Section 20-610, the requirement to file an annual statement of financial interests.

II. ADMINISTRATIVE ADJUDICATION OF ETHICS VIOLATIONS

Home Rule Charter Section 4-1100 provides that the Board "shall conduct its enforcement activities either by bringing enforcement actions in the Court of Common Pleas or, if authorized by Council by ordinance, administratively adjudicating alleged violations and imposing civil penalties and other remedies for violations." Code Section 20-606(1)(h) authorizes the Board to administratively adjudicate alleged violations of the laws within its jurisdiction.

Pennsylvania's Local Agency Law, 2 Pa.C.S. § 105 et seq., sets forth the essential rules and procedures for adjudications conducted by a municipal administrative agency. Board Regulation No. 2 provides detailed procedures and requirements for such adjudications. Notably, in order to comply with the due process requirements articulated by the Pennsylvania Supreme Court in *Lyness v. Commonwealth*, 529 Pa. 535 (1992), Regulation No. 2 mandates that the Board "shall maintain a separation between the adjudicative functions and the investigatory or prosecutorial functions." As a result, the individual members of the Board, any Hearing Officer in a particular case, and the General Counsel and their staff are part of the adjudicative function, while the Executive Director and Enforcement Staff assisting them are part of the prosecutorial function. At all times, the Board, its Hearing Officer, and Board Staff take care not to commingle the adjudicatory and prosecutorial functions of the agency.

Paragraph 2.16 of Regulation No. 2 provides that the Board may "appoint a Hearing Officer to oversee pre-hearing disclosures, preside over a hearing, and prepare Findings of Fact and Conclusions of Law for the Board's consideration." The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 ("Supplemental Procedures") further outline the role of the Hearing Officer, including that "[t]he Hearing Officer or the

General Counsel (if a Hearing Officer has not been appointed), shall also have the discretion to schedule such pre-hearing conferences and issue amended or supplemental orders as are necessary for the fair and expeditious adjudication of the case."

On March 17, 2021, the Board appointed Louis S. Rulli, the Practice Professor of Law and Director of the Civil Practice Clinic and Legislative Clinic at the University of Pennsylvania School of Law, to serve as a Hearing Officer. Mr. Rulli presided over this case.

III. PROCEDURAL HISTORY

The Executive Director of the Board of Ethics initiated this administrative enforcement proceeding by serving a Notice of Administrative Enforcement Proceeding ("Notice") on Respondent on October 6, 2025.[1] (Docket No. ("Doc.") 1.) The Notice alleged that Respondent violated Philadelphia Code Section 20-610 (Statement of Financial Interests) as interpreted by Board Regulation No. 3. (Notice at ¶¶7-8.)

The Hearing Officer issued Procedural Instructions on October 7, 2025 (Doc. 2.) explaining the process for administrative enforcement proceedings before the Board. The Procedural Instructions explicitly advised that if Respondent did not file a Response to the Enforcement Notice by October 27, 2025, he would waive his right to a hearing. Respondent did not file a Response or otherwise respond to the Notice. Thus, under Board Regulation No. 2, Paragraph 2.14(c), Respondent waived his opportunity for a hearing.

The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 ("Supplemental Procedures") allow the Executive Director to file a brief in support of the

[1] Initial service was made via email with delivery confirmation to otisbullock@gpca-phila.org. Regulation No. 2, Paragraph 2.13(b) permits that the Notice be served by "any other method that provides delivery confirmation." Item 1 of the Supplemental Procedures further provide for service of filings via email. When Respondent did not participate by responding to the Notice, the Hearing Officer out of an abundance of caution decided to serve the Briefing Order and all subsequent orders on Respondent via both email and U.S. Mail to the address listed by Respondent on his 2024 Statement of Financial Interest. As discussed further below, the evidence supports that the email account used by the Board was active and that Respondent received the Board's messages.

Enforcement Notice if a respondent does not request a hearing. Consistent with the Supplemental Procedures, the Hearing Officer issued a Briefing Order on October 30, 2025 (Doc. 4.) requiring the Executive Director to file his brief no later than November 10, 2025. The Briefing Order explained that Respondent could file a response to the Executive Director's brief within fourteen days of service.

On November 7, 2025, the Executive Director filed a Brief in Support of the Enforcement Notice. (Doc. 5.) Respondent did not file a responsive brief or otherwise respond to the Executive Director's submission. The Hearing Officer issued a Supplemental Briefing Order to the parties on December 4, 2025 (Doc. 6.) directing the Executive Director to provide additional information about communications with Respondent by December 16, 2025. The Supplemental Briefing Order again gave Respondent the opportunity to file a response to the Executive Director's briefing.

On December 15, 2025, the Executive Director requested an extension of time until January 15, 2026, to file his Supplemental Brief. The Hearing Officer granted this request. The same day, in response to email correspondence about the extension request, Respondent sent an email – from the same email address used by Board staff in all prior correspondence – to the Board's General Counsel, Executive Director, and other members of Board staff with the following body text:

> I still don't understand why the Ethics Board is going through all of this. This is much ado about nothing. I filed my financial statements. I have no violations or conflicts of interest. Is this really worth all of this exerted time and resources? It seems like a waste of everybody's time to me. I don't understand what this Ethics Board wants from me.

(Doc. 8.)

The Executive Director filed a Supplemental Brief on January 15, 2026. Respondent did not file a response. Respondent's email message of December 15, 2025, was his only participation in this enforcement proceeding.

On February 9, 2026, the Hearing Officer issued an Order to Close the Administrative Record (Doc. 10.) explaining that after February 19, 2026, there would be no further opportunity to submit evidence or argument. The parties had until 5:00 p.m. on February 19, 2026, to object to the closure of the record. Neither party filed an objection.

IV. FACTUAL BACKGROUND

In January 2024, the Mayor appointed Respondent to serve on the Educational Nominating Panel ("ENP"). (ENP Official Transcription of Minutes, Feb. 1, 2024 ("ENP Tr."), Executive Director's Brief ("ED's Br.") at Ex. B.) The ENP screens potential nominees for the Board of Education. Charter §12-207. Upon taking office, the Mayor must convene the ENP no later than February 1 of the year that the Mayor's term begins. *Id.* at (a). The ENP has only a few weeks to submit a list of potential nominees to the Mayor. *Id.* at (b). While ENP appointments technically continue for a period of four years, once the list of nominees is submitted the ENP does not meet, conduct business, or otherwise have any functional existence unless it is formally reconvened to fill a vacancy on the Board of Education. *Id.* at (a)(2).

The newly convened ENP held its first public meeting on February 1, 2024. (ENP Tr. at 1.) The first order of business was the adoption of the Rules of Procedure for the ENP. (*Id.*) Respondent moved for the adoption of the Rules of Procedure. (*Id.*) The rules were circulated to ENP members and publicly posted on the ENP's website. (Stmt. of John Dolan, ENP Tr. at 1.) The published Rules of Procedure include a summary of ethical responsibilities for ENP members, including a mention of financial disclosure filing requirements. *See* ENP Rules of

Procedure, Feb. 2024, available at https://www.phila.gov/media/20240213174056/2024-Educational-Nominating-Panel-Rules-of-Procedure.pdf at 3. The ENP held its last public meeting on March 12, 2024. ENP Meeting Agenda for March 12, 2024 available at https://www.phila.gov/media/20240311151759/ENP-Second-Public-Meeting-Agenda-pdf.pdf.[2]

The Ethics Code requires certain individuals to file a Statement of Financial Interest ("SFI"). Philadelphia Code § 20-610(1). Members of the Educational Nominating Panel are required to file an SFI by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Phila. Code § 20-610(1); Bd. Reg. 3. Since the ENP met and conducted business in 2024, its members were required to file SFIs by May 1, 2025.[3]

Respondent did not file an SFI by May 1, 2025. (*See* Respondent's SFI, E.D.'s Br. at Ex. A.) Board staff sent three emails to Respondent at otisbullock@gpca-phila.org notifying him that his 2024 SFI was overdue. Specifically, the Board's Investigative Analyst Alexander Kramer sent a letter via email on May 8, 2025, advising Respondent that he had "30 days to cure this defect," after which the matter would be referred for enforcement. (Decl. of Alexander Kramer at ¶8, Executive Director's Supplemental Brief ("ED's Supp. Br.") at Ex. A.) On June 13, 2025,

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[2] The Hearing Officer took notice of public records of the proceedings of both the ENP and the Board. While the Board is not bound by strict rules of evidence, we note that the Pennsylvania Rules of Evidence provide for judicial notice at any stage of the proceeding. Pa. R.E. 201(d). We find that official records or minutes of public proceedings of City boards and commissions provide facts regarding what was done or said at those proceedings that "can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned." Pa. R.E. 201(b)(2).

[3] Published records of the Board show that Board staff presented ethics training to the ENP on February 1, 2024. Bd. of Ethics Public Mtg. Minutes for Feb. 21, 2024, Attachment B, Feb.16, 2024 Gen. Counsel's Rpt. at 1 *available at* https://www.phila.gov/media/20240412110351/BOE-minutes-20240221.pdf. Board staff also held additional General Ethics and Financial Disclosure Info Sessions available to all City officers and employees in 2024 and 2025. *Id.* (General Ethics Feb. 14, 2024); *see also* Bd. of Ethics Public Mtg. Minutes for Mar. 20, 2024, Attachment B, Mar. 15, 2024 Gen. Counsel's Rpt. at 1 *available at* https://www.phila.gov/media/20240517103341/BOE-minutes-20240320.pdf (General Ethics Mar. 26 & Apr. 11, 2024; Financial Disclosure Mar. 21 & Apr. 3, 2024); Bd. of Ethics Public Mtg. Minutes for Mar. 19, 2025, Attachment B, Mar. 14, 2025 Gen. Counsel's Rpt. at 2 *available at* https://www.phila.gov/media/20250523125814/BOE-minutes-20250319.pdf (Financial Disclosure Mar. 12, 2025); Bd. of Ethics Public Mtg. Minutes for Apr. 16, 2025, Attachment B, Apr. 10, 2025 Gen. Counsel's Rpt. at 2 *available at* https://www.phila.gov/media/20250523125847/BOE-minutes-20250416.pdf (Financial Disclosure Mar. 26 & Apr. 10).

Mr. Kramer sent another letter to Respondent via email stating that after June 30, 2025, the matter could only be resolved through the Board's Enforcement Division and could carry a civil monetary penalty of up to $2,000. (ED's Supp. Br., Ex. A at ¶11.) Mr. Kramer sent a final email reminder to Respondent on June 25, 2025, informing him that he had until June 30, 2025, to file his SFI "before the matter would be escalated to Enforcement." *Id*. at ¶14. Mr. Kramer did not receive any bounce-back notifications suggesting that these emails could not be delivered. *Id*. at ¶16. Each of Mr. Kramer's emails included his email address, the Board's physical address, and a telephone number at which Mr. Kramer could be reached, but Respondent never responded to any of Mr. Kramer's outreach. *Id*. at ¶17.

On July 1, 2025, Respondent filed a Statement of Financial Interest for calendar year 2024. (Enforcement Notice at ¶2.)

As noted in the procedural history above, on December 15, 2025, the Executive Director requested an extension of time to file his Supplemental Brief. On that day, Respondent sent an email to Board staff to the General Counsel of the Board of Ethics, the Executive Director, and members of Enforcement Staff, stating the following:

> I still don't understand why the Ethics Board is going through all of this. This is much ado about nothing. I filed my financial statements. I have no violations or conflicts of interest. Is this really worth all of this exerted time and resources? It seems like a waste of everybody's time to me. I don't understand what this Ethics Board wants from me.

(Resp.'s Email of Dec. 15, 2025.) This email – from the same email address used for Mr. Kramer's compliance outreach and by Board staff throughout this proceeding – was Respondent's only participation in this enforcement proceeding.

V. RELEVANT LAW

a. Standards for Administrative Adjudication

In its adjudicative role, the Board must "determine, by a preponderance of the evidence, whether a violation of applicable law has occurred." Reg. 2, ¶ 2.20. The Executive Director bears the burden of proof and must establish each element of each alleged violation. *See Hui v. City of Philadelphia Parking Auth.*, 913 A.2d 994, 1000-01 (Pa. Commw. Ct. 2006). The Board's findings of fact must be supported by substantial evidence. *Monaghan v. Bd. of Sch. Dir.*, 618 A.2d 1239, 1243-44 (Pa. Commw. Ct. 1992). Substantial evidence is such relevant evidence that a reasonable mind might accept as adequate to support a conclusion. *Mrs. Smith's Frozen Foods Co. v. Workmen's Comp. Appeal Bd. (Clouser)*, 539 A.2d 11, 14 (Pa. Commw. Ct. 1988); *see also Bonatesta v. N. Cambria Sch. Dist.*, 48 A.3d 552, 558 (Pa. Commw. Ct. 2012).

Paragraph 2.14 of Regulation No. 2 provides that a respondent has twenty days from service of a Notice of Administrative Enforcement Proceeding to respond in writing. Paragraph 2.14(c) further provides:

> A respondent's failure to request a hearing in his or her written response to the Notice is a waiver of the right to a hearing. A respondent's failure to respond in writing to the Notice by the deadline set forth in this Paragraph is a waiver of the right to a hearing. The Board may grant an untimely request for a hearing if such request is made before the Board votes to approve its final determination in the matter as provided in Paragraph 2.20.

Paragraph 2.20 of Regulation No. 2 describes the process by which the Board shall make final determinations. Paragraph 2.20(b) further explains:

> If the respondent does not request a hearing, the Board may make its final determination based on:
>
> i. Undisputed allegations in the Executive Director's Notice of Administrative Enforcement Proceeding; or
>
> ii. Evidence submitted by the Executive Director in support of the Notice of Administrative Enforcement Proceeding, including but not limited to deposition transcripts, documents, and affidavits or declarations.

b. Requirement to File a Statement of Financial Interests

Section 20-610 of the Philadelphia Code provides:

> (1) The following individuals shall file a statement of financial interests for the preceding calendar year with the Board of Ethics no later than the first day of May of each year that the individual holds office and of the year after the individual leaves such office. All such individuals who take office after the effective filing date or less than thirty (30) days before the effective filing date must file a statement of financial interest for the preceding calendar year within thirty (30) days of taking office.
>
> ******
>
> (e) Members and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation;

Section 20-601(4) defines "board or commission member" as "[a] member of any City of Philadelphia board or commission established by The Philadelphia Home Rule Charter, The Philadelphia Code, or an Executive Order."

Section 20-606(1)(e)(.2) of the Code provides that

> The Board shall issue rules and regulations concerning the filing of Statements of Financial Interest for the purpose of ensuring compliance by all City officers and employees with the applicable provisions of financial disclosure law. The Board shall investigate any instances of non-compliance and take appropriate action.

Consistent with this directive, the Board promulgated Regulation No. 3 (Statements of Financial Interests) in December 2021 to clarify and interpret the SFI filing requirements. Subpart B of

Board Regulation No. 3 lists who must file an SFI, including members of City boards and commissions who must file an SFI. Specifically, Paragraph 3.6 of Regulation No. 3 requires filing by "[a] member of the Educational Nominating Panel, Civil Service Panel, Citizens Police Oversight Commission Selection Panel, or Finance Panel." Paragraph 3.7 of Regulation No. 3 provides further instruction as to when filers must submit an SFI:

> a. An individual who is required to file a Statement of Financial Interests must do so by the first day of May in any year in which they hold office and by the first day of May of the year after they leave such office.
>
> b. An individual who takes office after the first day of April shall file within 30 days of taking office.

Example 4 details when a member of a nominating panel must file an SFI:

> A nominating panel listed in Paragraph 3.6 convenes on September 15, 2021 and concludes its work on November 1, 2021. The panel's members must each file a Statement of Financial Interests with the Board by October 15, 2021 disclosing information related to calendar year 2020. They must also each file a Statement of Financial Interests with the Board by May 1, 2022 disclosing information related to calendar year 2021.

c. Civil monetary penalties

Code Section 20-612 provides that penalties for violations of the Ethics code "shall be as set forth in Chapter 20-1300." Section 20-1302 provides for penalties for all violations not enumerated in Section 20-1301 as follows:

> All other violations of Chapters 20-600 or 20-1000 shall be subject to a fine or civil penalty of one thousand dollars ($1,000), subject to the following provisions.
>
> (1) Definitions. For purposes of this Section the following definitions apply.
>
> (a) Mitigating Factors. The following are mitigating factors:
>
> (.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.
>
> (.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.
>
> (.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

(b) *Aggravating Factors.* The following are aggravating factors:

(.1) *Intent.* The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.

(.2) *Repeat violation.* The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.

(.3) *Obstruction of investigation.* The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

(2) *Consideration and Effect of Mitigating Factors and Aggravating Factors.*

(a) When considering the imposition of a penalty under this Section, the Board of Ethics in an administrative adjudication or court of competent jurisdiction shall make factual findings regarding mitigating factors and aggravating factors.

(b) The one thousand dollar ($1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars ($500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars ($750) if more than one mitigating factor is present.

(c) The one thousand dollar ($1,000) fine or civil penalty set forth in Section 20-1302 shall be increased by one thousand dollars ($1,000) for each aggravating factor that is present, provided that the total fine or civil penalty that may be imposed for one violation shall not exceed two thousand dollars ($2,000).

Regulation No. 3, Paragraph 3.19 further provides for civil monetary penalties to be assessed for violations of the SFI filing requirements:

> An officer or employee of the City who violates any of the restrictions set forth in this Regulation shall be subject to a civil penalty of up to $2,000 for each such violation. In determining the appropriate amount of monetary penalty, the Board may consider both mitigating and aggravating factors. Mitigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics. Aggravating factors that the Board may consider include whether the violator: (i) acted knowingly; (ii) is a repeat offender; or (iii) obstructed the investigation of the Board of Ethics.

VI. ANALYSIS

a. Violation of Section 20-610 and Regulation No. 3

The Notice has one count for a single violation of Section 20-610 and Regulation No. 3 based on Respondent's failure to file an SFI disclosing financial interests for 2024 by May 1, 2025. (Enforcement Notice at ¶¶7-8.) The elements of a *prima facie* case for failure to file an SFI are straightforward. The Executive Director must show by a preponderance of the evidence that Respondent:

- held a City position listed in Philadelphia Code Section 20-610(1) or Subpart B of Board Regulation No. 3;
- served in that position in 2024; and
- did not file an SFI disclosing financial interests for 2024 by May 1, 2025.

The Executive Director set forth factual allegations in the Notice that he supplemented with evidence submitted through his Brief in Support. Respondent's only participation in this proceeding was his email of December 15, 2025. Even if we treat that email as a response to the Notice or Brief in Support, Respondent did not deny or otherwise contest any of the facts asserted by the Executive Director. Respondent asserts that he filed his SFI and had "no violations or conflicts of interest." The Notice, however, acknowledges that Respondent filed his SFI on July 1, 2025, and does not allege a conflict of interest (or any other violation based upon the content of the Respondent's SFI). Thus, Respondent's December 15, 2025, email does not contest any of the facts presented by the Executive Director.

Paragraph 2.20 of Regulation No. 2 provides that our final determination may be based on the uncontested facts in the Notice and any evidence submitted by the Executive Director in support of the Notice. *See* Bd. Reg. No. 2, ¶2.20(b); *see also Procedures for Admin. Enf. Proceedings that Supplement Bd. Reg. 2* at Item 5 (providing for briefing where a hearing is waived). Between the Notice and his Brief in Support, the Executive Director has sufficiently alleged facts or presented evidence to support each element of a violation of the SFI filing requirement.

It is undisputed that Respondent served on the ENP in 2024. Regulation No. 3 requires that, if the ENP is convened, all members must file an SFI. Reg. 3, ¶3.6. The regulation clearly explains that a member of a nominating panel (like the ENP) must file an SFI disclosing their financial interests in any calendar year in which the panel was convened, even if the May 1 deadline arises after the panel's work has ended. Reg. 3, ¶3.19, Example 4. It is further uncontested that Respondent did not file his 2024 SFI until July 1, 2025. (Notice at ¶6.) Accordingly, we find that the Executive Director has established a *prima facie* showing that Respondent failed to timely file his 2024 SFI in violation of Section 20-610 and Regulation No. 3.

VII. PENALTY

Section 20-612 authorizes the Board to assess civil monetary penalties for violations of the Ethics Code as described in Chapter 20-1300. Section 20-1302 sets a base penalty of $1,000 that the Board may increase based on aggravating factors or decrease based on mitigating factors. Section 20-1302(2)(a) directs the Board to "make factual findings regarding mitigating factors and aggravating factors." Section 20-1302(2)(b) provides:

> (b) The one thousand dollar ($1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars ($500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars ($750) if more than one mitigating factor is present.

We read the plain language of this provision to mean that if the Board finds a violation in an administrative enforcement proceeding, it may neither waive the monetary penalty nor impose a monetary penalty of less than $250 per violation. Thus, Section 20-1302(2)(b) effectively sets a minimum penalty of $250 per violation even if more than two mitigating factors are present.

The Executive Director proposed a penalty of $1,000. (*See* Enforcement Notice at 4.) Neither party has presented any evidence to support either an enhancement or reduction of the penalty. The Board, however, is directed to make specific factual findings as to mitigating or aggravating circumstances. Accordingly, we examine whether the evidence submitted in this case supports any mitigating or aggravating factors.

a. Aggravating factors[4]

Neither party has alleged or presented any evidence of aggravating factors in this case. Accordingly, we find no aggravating factors and turn to consideration of mitigating factors.

b. Mitigating factors

Section 20-1302(1)(a) lists the following mitigating factors:

> (.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.
> (.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.
> (.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.
> (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

Regulation No. 3, Paragraph 3.19 describes mitigating factors in similar, though not identical, terms: "[m]itigating factors that the Board may consider include: (i) a good faith effort

[4] Section 20-1302(1)(b) lists the following aggravating factors:

> (.1) *Intent.* The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.
> (.2) *Repeat violation.* The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.
> (.3) *Obstruction of investigation.* The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.
> (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics."[5]

1. Good faith effort to comply

Basic principles of statutory construction require that a "good faith effort to comply" have some meaning separate from "prompt corrective action." *See* 1 Pa. C.S. §1921(a) ("[e]very statute shall be construed, if possible, to give effect to all of its provisions"). While this distinction may vary depending on the type of violation at issue, we find that where the law requires filing by a date certain, a good faith effort to comply necessarily requires some attempt to timely fulfill the disclosure obligation. Thus, an untimely disclosure – particularly one made weeks or months after the deadline – is not a good faith effort to comply.

There is no evidence before us that Respondent attempted to file by the deadline of May 1, 2025. Accordingly, we find that Respondent did not make a good faith effort to comply. This finding does not imply that Respondent acted in *bad* faith. Rather, the result is dictated by the absence of any facts showing that Respondent tried to file on or before the May 1 deadline.

2. Prompt corrective action

Having found that the time for corrective action for a filing is necessarily distinct from the initial filing deadline, we consider when late filing of disclosures can nonetheless be sufficiently "prompt" to warrant mitigation of a penalty. Black's Law Dictionary defines "prompt" as "done quickly, immediately, or at the right time; performed without delay." Black's Law Dictionary (12th ed. 2024). To maintain a distinction between good faith efforts to comply and prompt corrective action in the disclosure context, we find that whether a filer acted

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[5] The Hearing Officer concluded that the Board has the authority to consider additional mitigating factors "in order to promote justice, consistent with the overall objectives of the Board of Ethics." *See* Report & Recommendation at 16 (citing Pennsylvania statutory construction law). We agree with this conclusion and its reasoning but need not reach the question because – as the Hearing Officer points out – "Respondent has not presented any evidence or offered any arguments that would support an additional basis for mitigation of the monetary penalty." *Id.*

"quickly" or "without delay" must be measured not from the filing deadline, but instead from the point at which they knew of the defect and reasonably understood how to correct it.

The Board's Investigative Analyst, Alexander Kramer, notified Respondent that his SFI was overdue on May 8, 2025. (Supp. Br. at Ex. A, ¶8.) He sent additional notifications to Respondent on June 13 and 25, 2025. (*Id.* at ¶¶11, 14.) Mr. Kramer's communications warned Respondent that if he did not file by June 30, 2025, the matter would be turned over to Enforcement. Responded did not respond to any of these communications and did not file his 2024 SFI until July 1, 2025.

The limited evidence before us supports that Respondent received Mr. Kramer's emails. Respondent's email of December 15, 2025, came from the same email address to which Mr. Kramer addressed his three earlier email communications. This suggests that Respondent had access to this email address at all relevant times and was aware of the Board's attempts to obtain compliance. Respondent has not presented any evidence to suggest that he lacked sufficient information to take prompt corrective action.

Board staff notified Respondent not only of his failure to file, but also of the date (June 30, 2025) after which the matter would be turned over to Enforcement. While not required to do so, Board staff gave Respondent a grace period with a date certain by which he could take corrective action and avoid a monetary penalty. Despite multiple notices of that date, Respondent failed to file in the extra time provided. Accordingly, while Respondent's filing of his 2024 SFI on July 1, 2025, was corrective, we find that it was not sufficiently prompt to warrant mitigation of the monetary penalty.

3. Prompt self-reporting

Section 20-1302(1)(a)(.3) describes self-reporting as reporting of a violation to the Board of Ethics. There is no evidence in the record that Respondent at any time contacted Board staff to self-report. We cannot, therefore, mitigate the penalty on the basis of self-reporting.

VIII. CONCLUSION

For the reasons stated above, we find that the undisputed evidence shows that Respondent was required to file an SFI for 2024 because he served on the ENP during that year, but failed to file by May 1, 2025 in violation of Code Section 20-610 and Regulation No. 3. Additionally, we find that the evidence does not support the application of any mitigating factors that would warrant reduction of the civil monetary penalty.

Accordingly, the Board imposes a civil monetary penalty of $1,000 to be paid within thirty (30) days of the issuance and mailing of this Final Determination and the accompanying Order.

BY THE PHILADELPHIA BOARD OF ETHICS

/s/ Ellen Mattleman Kaplan

Ellen Mattleman Kaplan, Esq., Acting Chair
Hon. Nelson A. Diaz (Ret.), Member
Jim Engler, Esq., Member
Wesley R. Payne, IV, Esq., Member

Exhibit A

BOARD OF ETHICS
OF THE CITY OF PHILADELPHIA

J. Shane Creamer, Jr.	:	
Executive Director	:	
Board of Ethics	:	
of the City of Philadelphia	:	
1515 Arch Street, 18th Floor	:	
Philadelphia, PA 19102	:	
	:	**Matter No:** 2510ET21
v.	:	
Otis Bullock	:	
[redacted]	:	
	:	
otisbullock@gpca-phila.org	:	

HEARING OFFICER'S REPORT & RECOMMENDATION

I. Introduction

On October 6, 2025, J. Shane Creamer, Jr., Executive Director of the Board of Ethics, filed a Notice of Administrative Enforcement Proceeding ("Enforcement Notice") against Otis Bullock ("Respondent"), a former member of the Educational Nominating Panel. The Enforcement Notice alleges that Respondent violated the Philadelphia Code by failing to file timely a Statement of Financial Interest as required by Philadelphia Code Section 20-610 and Board Regulation No. 3.

It is undisputed that Respondent served on the Educational Nominating Panel ("ENP") during calendar year 2024 and that the Philadelphia Code and Board of Ethics regulations require members of the ENP to file an annual Statement of Financial Interest ("SFI") no later than May 1 of each calendar year that they hold office and by May 1 of the calendar year after they leave office. It is undisputed that Respondent did not file his SFI for 2024 until July 1, 2025, despite several Board reminders of his overdue filing.

II. Procedural History

The Executive Director of the Board of Ethics commenced this enforcement action on October 6, 2025, by filing a Notice of Administrative Enforcement Proceeding in which he alleged that Respondent violated Philadelphia Code Section 20-610, as interpreted by Board of Ethics regulations, when he failed to file the required Statement of Financial Interest on or by May 1, 2025. The Enforcement Notice was served on Respondent on October 6, 2025, via electronic mail with delivery confirmation to otisbullock@gpca-phila.org. (Proof of Service of Notice of Admin. Enforcement Proceeding).

The Hearing Officer issued Procedural Instructions to the parties on October 7, 2025, using the same email address for Respondent. The Procedural Instructions explained the Board's administrative enforcement proceeding process and set a deadline of October 27, 2025, for Respondent to file a Response to the Enforcement Notice. The Procedural Instructions advised Respondent of the importance of filing a Response to the Enforcement Notice by October 27, 2025, and informed him that if he failed to file a response, he would waive his right to have a hearing in this matter.

Respondent did not respond to the Enforcement Notice. Because Respondent failed to respond, he waived his opportunity for a hearing. Bd. Reg. 2, ¶ 2.14 (c). On October 30, 2025, the Hearing Officer issued a Briefing Order to the parties which was served on the Executive Director and on the Respondent via email and via U.S. Mail to the address listed by Respondent on his 2024 Statement of Financial Interest. In accordance with the Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2, the Executive Director may file a brief in support of the Enforcement Notice if a respondent does not request a hearing. The Briefing Order required the Executive Director to file his brief on or by November

10, 2025. The Briefing Order further gave the Respondent the right to file a responsive brief within fourteen days of service of the Executive Director's brief.

The Executive Director filed a Brief in Support of the Enforcement Notice on November 7, 2025, and served it on Respondent via email and U.S. Mail. The Briefing Order stated that Respondent had fourteen days following service of the Executive Director's Brief, which gave Respondent until November 21, 2025, in which to file a responsive brief. Respondent failed to file a responsive brief. The Hearing Officer then issued a Supplemental Briefing Order to the parties on December 4, 2025 (again serving Respondent via email and U.S. Mail), directing the Executive Director to file a Supplemental Brief by December 16, 2025, that provided additional information about communications with Respondent prior to the filing of the Enforcement Notice. The Supplemental Briefing Order also gave Respondent an opportunity to respond to the Executive Director's Supplemental Brief.

On December 15, 2025, the Executive Director requested an extension of time until January 15, 2026, to file his Supplemental Brief, which was granted. On December 15, 2025, in response to email correspondence about the extension request, Respondent sent an email from his email account at otisbullock@gpca-phila.org to the General Counsel of the Board of Ethics, the Executive Director, and members of Enforcement Staff, stating the following:

> I still don't understand why the Ethics Board is going through all of this. This is much ado about nothing. I filed my financial statements. I have no violations or conflicts of interest. Is this really worth all of this exerted time and resources? It seems like a waste of everybody's time to me. I don't understand what this Ethics Board wants from me. (Resp.'s Email of Dec. 15, 2025).

On January 15, 2026, the Executive Director filed a Supplemental Brief, which he served on Respondent via email and U.S. Mail. Respondent had fourteen days from service of that brief in which to file a response to the Supplemental Brief, if he desired to do so. Respondent did not file a response to the Supplemental Brief. Respondent's email message of December 15, 2025, is Respondent's only participation in this enforcement proceeding.

On February 9, 2026, the Hearing Officer issued an Order to Close the Administrative Record (again serving Respondent via email and U.S. Mail), notifying the parties that the Administrative Record in this case would close on February 19, 2026. This Order informed the parties that once the record closed, they would not be able to present new facts or legal arguments, and there would be no further opportunity to be heard. Under this Order, the parties were given until 5:00 p.m. on February 19, 2026, to file written objections to the closure of the record. Neither party filed an objection nor otherwise responded to the Order closing the record.

III. Facts

Respondent Otis Bullock was appointed by Mayor Cherelle L. Parker to serve on the ENP in January 2024. The ENP screens and selects potential nominees for the Board of Education. Charter §12-207. Upon taking office, the Mayor is required to convene the ENP no later than February 1 of the year that Mayor's term begins. *Id.* at (a).

The ENP has a short timeframe in which to solicit nomination submissions, review those submissions, and provide the Mayor with three potential nominees for each seat on the Board of Education. *Id.* at (b). The ENP's work concludes upon sending a list of nominees to the Mayor. *Id.* While individuals remain members for a period of four years, the ENP functionally does not exist as an entity unless and until it is reconvened to fill a vacancy on the Board of Education. *Id.* at (a)(2).

The ENP appointed by Mayor Parker held its first public meeting on February 1, 2024. (ENP Official Transcription of Minutes, Feb. 1, 2024 ("ENP Tr."), Executive Director's Brief ("ED's Br.") at Ex. B.) Respondent attended that meeting, and was elected as Chairperson of the

ENP. *Id*. The ENP appears to have held its last public meeting on March 12, 2024. (ENP Meeting Agenda for March 12, 2024 available at https://www.phila.gov/media/20240311151759/ENP-Second-Public-Meeting-Agenda-pdf.pdf).

At the ENP's first public meeting, the official minutes record that the first order of business was the adoption of the Rules of Procedure for the ENP. The Respondent moved for the adoption of the Rules of Procedure. (ENP Tr. at 1.) These rules were circulated to members of the ENP and made publicly available on the ENP's website. (Stmt. of John Dolan, ENP Tr. at 1.) The ENP Rules of Procedure published on the ENP's website includes a summary of ethical and legal responsibilities of ENP members, including the responsibility for financial disclosure filings. (*See* ENP Rules of Procedure, Feb. 2024, available at https://www.phila.gov/media/20240213174056/2024-Educational-Nominating-Panel-Rules-of-Procedure.pdf at 3).

The Ethics Code requires certain individuals to file a Statement of Financial Interest. Philadelphia Code § 20-610(1). Members of the Educational Nominating Panel are required to file an SFI by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Phila. Code § 20-610(1); Bd. Reg. 3. Since the ENP met and conducted business in 2024, its members were required to file SFIs by May 1, 2025.[1]

[1] Published records of the Board show that Board staff presented ethics training to the ENP on February 1, 2024. Bd. of Ethics Public Mtg. Minutes for Feb. 21, 2024, Attachment B, Feb.16, 2024 Gen. Counsel's Rpt. at 1 *available at* https://www.phila.gov/media/20240412110351/BOE-minutes-20240221.pdf. Board staff also held additional General Ethics and Financial Disclosure Info Sessions available to all City officers and employees in 2024 and 2025. *Id.* (General Ethics Feb. 14, 2024); *see also* Bd. of Ethics Public Mtg. Minutes for Mar. 20, 2024, Attachment B, Mar. 15, 2024 Gen. Counsel's Rpt. at 1 *available at* https://www.phila.gov/media/20240517103341/BOE-minutes-20240320.pdf (General Ethics Mar. 26 & Apr. 11, 2024; Financial Disclosure Mar. 21 & Apr. 3, 2024); Bd. of Ethics Public Mtg. Minutes for Mar. 19, 2025, Attachment B, Mar. 14, 2025 Gen. Counsel's Rpt. at 2 *available at* https://www.phila.gov/media/20250523125814/BOE-minutes-20250319.pdf (Financial Disclosure Mar. 12, 2025); Bd. of Ethics Public Mtg. Minutes for Apr. 16, 2025, Attachment B, Apr. 10, 2025 Gen. Counsel's Rpt. at 2 *available at* https://www.phila.gov/media/20250523125847/BOE-minutes-20250416.pdf (Financial Disclosure Mar. 26 & Apr. 10).

Respondent did not file an SFI by May 1, 2025. On May 8, 2025, Alex Kramer, Investigative Analyst for the Board of Ethics sent a letter by email to Respondent at otisbullock@gpca-phila.org, advising him that he was required to file a Statement of Financial Interest by May 1 and that the Board had not yet received his 2024 Statement of Financial Interest. The letter informed Respondent that he had "30 days to cure this defect," after which the matter would be referred to the Board's Enforcement division for appropriate action. (Decl. of Alexander Kramer at ¶8, Executive Director's Supplemental Brief ("ED's Supp. Br.") at Ex. A.)

When Board staff did not hear from Respondent, Mr. Kramer sent a follow-up letter by email to Respondent on June 13, 2025, repeating the same information contained in the previous email correspondence. (ED's Supp. Br., Ex. A at ¶11.) This letter also informed Respondent that after June 30, 2025, the matter could only be resolved through the Board's Enforcement Division and the failure to file the required SFI could result in a civil monetary penalty of up to $2,000. (*Id.*)

Mr. Kramer sent a final email reminder to Respondent on June 25, 2025, informing him that he had until June 30, 2025, to submit his SFI "before the matter would be escalated to Enforcement." *Id*. at ¶14. The forgoing emails and compliance letters sent by Mr. Kramer were all sent to Respondent at his ENP email address of otisbullock@gpca-phila.org. Mr. Kramer avers that he did not receive any bounce-back notifications from Respondent's GPCA email address. *Id*. at ¶16. Further, Mr. Kramer states that he never received a response from Respondent to any of his emails even though his communications all contained his email address, the Board's physical address, and a telephone number at which Mr. Kramer could be reached. *Id*. at ¶17.

On July 1, 2025, Respondent filed a Statement of Financial Interest for calendar year 2024. (Enforcement Notice at ¶2.)

As previously described above in the procedural history section, the Executive Director requested an extension of time on December 15, 2025, to file his Supplemental Brief. On that day, in response to email correspondence about the extension request, Respondent sent an email from his email address of otisbullock@gpca-phila.org to the General Counsel of the Board of Ethics, the Executive Director, and members of Enforcement Staff, stating the following:

> I still don't understand why the Ethics Board is going through all of this. This is much ado about nothing. I filed my financial statements. I have no violations or conflicts of interest. Is this really worth all of this exerted time and resources? It seems like a waste of everybody's time to me. I don't understand what this Ethics Board wants from me.

(Resp.'s Email of Dec. 15, 2025.) This email from Respondent on December 15, 2025, was his only participation in this enforcement proceeding.

IV. Governing Law

The governing law applicable to financial disclosure requirements of members of the Educational Nominating Panel are set forth in the following Philadelphia Code provisions and Board of Ethics regulations.

Philadelphia Code

§ 20-601. Definitions.

(4) *Board or commission member.* A member of any City of Philadelphia board or commission established by The Philadelphia Home Rule Charter, The Philadelphia Code, or an Executive Order.

§ 20-606 Board of Ethics

(1) *Powers and Duties.*

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(e) *Financial Disclosure.*

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(.2) The Board shall issue rules and regulations concerning the filing of Statements of Financial Interest for the purpose of ensuring compliance by all City officers and employees with the applicable provisions of financial disclosure law. The Board shall investigate any instances of non-compliance and take appropriate action.

§ 20-610. Statement of Financial Interests.

(1) The following individuals shall file a statement of financial interests for the preceding calendar year with the Board of Ethics no later than the first day of May of each year that the individual holds office and of the year after the individual leaves such office. All such individuals who take office after the effective filing date or less than thirty (30) days before the effective filing date must file a statement of financial interest for the preceding calendar year within thirty (30) days of taking office.

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(e) Members and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation;

§ 20-612. Penalties and Other Consequences of Violations.

(1) Penalties for violations of this Chapter shall be as set forth in Chapter 20-1300.

§ 20-1302. Penalties for Other Violations; Mitigating and Aggravating Factors.

All other violations of Chapters 20-600 or 20-1000 shall be subject to a fine or civil penalty of one thousand dollars ($1,000), subject to the following provisions.

(1) Definitions. For purposes of this Section the following definitions apply.

(a) Mitigating Factors. The following are mitigating factors:

(.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.

(.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.

(.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

(b) *Aggravating Factors.* The following are aggravating factors:

(.1) *Intent.* The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.

(.2) *Repeat violation.* The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.

(.3) *Obstruction of investigation.* The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

(2) *Consideration and Effect of Mitigating Factors and Aggravating Factors.*

(a) When considering the imposition of a penalty under this Section, the Board of Ethics in an administrative adjudication or court of competent jurisdiction shall make factual findings regarding mitigating factors and aggravating factors.

(b) The one thousand dollar ($1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars ($500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars ($750) if more than one mitigating factor is present.

(c) The one thousand dollar ($1,000) fine or civil penalty set forth in Section 20-1302 shall be increased by one thousand dollars ($1,000) for each aggravating factor that is present, provided that the total fine or civil penalty that may be imposed for one violation shall not exceed two thousand dollars ($2,000).

Board Regulation No. 3

SUBPART B. WHO MUST FILE A STATEMENT OF FINANCIAL INTERESTS

3.6 Nominating Panels. A member of the Educational Nominating Panel, Civil Service Panel, Citizens Police Oversight Commission Selection Panel, or Finance Panel, but only when the panel is convened.

SUBPART C. FILING STATEMENTS OF FINANCIAL INTERESTS

3.7 Filing Deadline

a. An individual who is required to file a Statement of Financial Interests must do so by the first day of May in any year in which they hold office and by the first day of May of the year after they leave such office.

b. An individual who takes office after the first day of April shall file within 30 days of taking office.

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Example 4) A nominating panel listed in Paragraph 3.6 convenes on September 15, 2021 and concludes its work on November 1, 2021. The panel's members must each file a Statement of Financial Interests with the Board by October 15, 2021 disclosing information related to calendar year 2020. They must also each file a Statement of Financial Interests with the Board by May 1, 2022 disclosing information related to calendar year 2021.

SUBPART E. PENALTIES

3.19 An officer or employee of the City who violates any of the restrictions set forth in this Regulation shall be subject to a civil penalty of up to $2,000 for each such violation. In determining the appropriate amount of monetary penalty, the Board may consider both mitigating and aggravating factors. Mitigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics. Aggravating factors that the Board may consider include whether the violator: (i) acted knowingly; (ii) is a repeat offender; or (iii) obstructed the investigation of the Board of Ethics.

V. Application of SFI Filing Requirements to this Enforcement Proceeding

Philadelphia Code Section 20-610(1)(e) and Board Regulation 3, Paragraph 3.6 require members of the listed City nominating panels to file an SFI disclosing specific financial information for each year in which they served on that nominating panel. Under Philadelphia

Code Section 20-610 and Board Regulation No. 3, Paragraph 3.7(a), the SFI must be filed by May 1 of each year that the filer holds office *and of the year after the filer leaves such office*.

Respondent has not disputed the facts asserted by the Executive Director in the Enforcement Notice or in his filed Briefs. Accordingly, it is undisputed that Respondent was a member of the ENP in 2024, that he was required to file an SFI by May 1, 2025, and failed to do so, and that he filed his SFI untimely on July 1, 2025.

VI. Recommendation

The Executive Director alleges that Respondent violated the Ethics Code by failing to file his 2024 SFI by May 1, 2025. (Enforcement Notice at ¶8.) To establish a prima facie case that Respondent violated the SFI filing requirement for 2024, the Executive Director must establish by a preponderance of the evidence that Respondent held a City position listed in Philadelphia Code Section 20-610(1) or Subpart B of Board Regulation No. 3, that he served in that position in 2024, and that he did not file an SFI by May 1, 2025.

It is undisputed that Respondent served on the Educational Nominating Panel in 2024 and was required to file his SFI by May 1, 2025. Members of the Educational Nominating Panel must file statements of financial interest disclosing their interests for the calendar year preceding their appointment as well as any calendar year during which the panel was convened under Board of Ethics Regulation No. 3, 3.6. It is undisputed that Respondent participated in ENP meetings in 2024 but did not file an SFI until July 1, 2025. (Enforcement Notice at ¶6.) Accordingly, I find that the Executive Director has established a prima facie showing that Respondent violated his SFI filing requirement.

Respondent's only participation in this proceeding was his email of December 15, 2025. Respondent did not assert any facts other than that he filed his SFI and had "no violations or conflicts of interest." However, to be clear, the Executive Director does not allege a conflict of interest or any violation based upon the content of the Respondent's SFI, and therefore the Respondent's statement in this regard is not relevant to this enforcement proceeding.

Respondent has declined to participate in this enforcement proceeding or to dispute the facts as alleged by the Executive Director. Where a respondent does not request a hearing, the Board may make a final determination based on undisputed allegations in the Enforcement Notice or other evidence submitted by the Executive Director in support of the Enforcement Notice. *See* Bd. Reg. No. 2, ¶2.20(b); *Procedures for Admin. Enf. Proceedings that Supplement Bd. Reg. 2* at Item 5. Based upon the undisputed evidence presented in this case, as set forth in the Enforcement Notice and the Brief and Supplemental Brief filed by the Executive Director, I find that Respondent was required to file his SFI by May 1, 2025, and that he failed to do so in violation of the Philadelphia Code, Section 20-610, as interpreted by Board Regulation No. 3.

VII. Imposition of Penalty

Having concluded that Respondent violated his SFI filing requirement, I must recommend an appropriate penalty. The Ethics Code provides for civil monetary penalties under Section 20-612, which incorporates by reference Philadelphia Code Chapter 20-1300. Section 20-1302 provides for a base penalty of $1,000 that may be increased by aggravating factors or decreased by mitigating factors. Section 20-1302(2) gives specific direction to the Board as to the impact of aggravating or mitigating factors on the amount of a penalty:

> (a) When considering the imposition of a penalty under this Section, the Board of Ethics in an administrative adjudication or court of competent jurisdiction shall make factual findings regarding mitigating factors and aggravating factors.
>
> (b) The one thousand dollar ($1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars ($500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars ($750) if more than one mitigating factor is present.

> (c) The one thousand dollar ($1,000) fine or civil penalty set forth in Section 20-1302 shall be increased by one thousand dollars ($1,000) for each aggravating factor that is present, provided that the total fine or civil penalty that may be imposed for one violation shall not exceed two thousand dollars ($2,000).

Accordingly, Section 20-1302(2)(a) requires the Board to make specific factual findings regarding the presence or absence of mitigating and aggravating factors. Section 20-1302(2)(b) provides that the presence of more than one mitigating factor can result in a maximum reduction of $750 from the $1,000 required penalty. I understand this provision to mean that the Board may not, after finding a violation, waive the penalty in its entirety or impose a monetary penalty of less than $250 in this enforcement proceeding. Rather, Section 20-1302(2)(b) effectively sets a minimum penalty of $250 per violation, after consideration of all mitigating factors.

Section 20-1302(1) defines mitigating and aggravating factors as follows:

> (a) Mitigating Factors. The following are mitigating factors:
>
> > (.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.
> >
> > (.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.
> >
> > (.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.
> >
> > (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.
>
> (b) *Aggravating Factors.* The following are aggravating factors:
>
> > (.1) *Intent.* The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.
> >
> > (.2) *Repeat violation.* The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.
> >
> > (.3) *Obstruction of investigation.* The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.
> >
> > (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

Regulation No. 3, Paragraph 3.19 describes mitigating and aggravating factors in similar, though not identical, terms:

> … Mitigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics. Aggravating factors that the Board may consider include whether the violator: (i) acted knowingly; (ii) is a repeat offender; or (iii) obstructed the investigation of the Board of Ethics.

In this case, the Executive Director requests that the Board impose a penalty of $1,000 for Respondent's SFI disclosure violation. (*See* Enforcement Notice at 4.) Neither party has presented any evidence to support either an enhancement or reduction of the penalty, and therefore the Board may assess the requested $1,000 penalty. The Board, however, retains the discretion to apply mitigating and aggravating factors based on the evidence before it. Accordingly, I will examine whether the limited facts presented in this case support any mitigating or aggravating factors.

Aggravating Factors

Neither party has alleged or presented any evidence of aggravating factors in this case. Accordingly, I find no aggravating factors and turn to consideration of mitigating factors.

Mitigating Factors

Good faith effort to comply

Basic principles of statutory construction require that a "good faith effort to comply" have some meaning separate from "prompt corrective action." *See* 1 Pa. C.S. §1921(a) ("[e]very statute shall be construed, if possible, to give effect to all of its provisions"). While the Board could make this distinction in a variety of ways depending on the type of violation at issue, where the law requires filing by a date certain, it is reasonable to conclude that a good faith effort to comply requires some attempt to timely fulfill the disclosure obligation. Where a disclosure is already untimely – particularly where weeks or months have passed since deadline – the pertinent question is no longer one of good faith compliance but of corrective action.

There is no evidence presented in this case that Respondent attempted to file by the deadline of May 1, 2025. Accordingly, there is no basis upon which to find that Respondent made a good faith effort to comply such that the monetary penalty should be mitigated. To be clear, this finding does not suggest that Respondent acted in *bad* faith. It simply reflects the undisputed fact that there is no evidence that he made any attempt to comply by the required filing deadline.

Prompt corrective action

As discussed above, the timeframe for corrective action for a filing is necessarily distinct from the initial filing deadline. Black's Law Dictionary defines "prompt" as "done quickly, immediately, or at the right time; performed without delay." Black's Law Dictionary (12th ed. 2024). Whether Respondent acted "quickly" or "without delay" must be measured from the point at which he knew of the violation or defect and understood how to correct it. The Board's Investigative Analyst, Alexander Kramer, notified Respondent that his SFI was overdue on May 8, 2025. (Supp. Br. at Ex. A, ¶8.) He sent additional notifications to Respondent on June 13, 2025, and again on June 25, 2025. (*Id.* at ¶¶11, 14.) These communications reminded Respondent that if he did not file by June 30, 2025, the matter would be turned over to Enforcement. Responded did not respond to any of these communications and did not file his 2024 SFI until July 1, 2025.

Respondent's email of December 15, 2025, was sent from the same email account to which Mr. Kramer addressed his three email communications. This suggests that Respondent had access to this email address at all relevant times and was aware of the Board's attempts to obtain compliance. Additionally, Respondent has not presented any evidence to suggest that he lacked sufficient information to take prompt corrective action. Based on the evidence, I find that Respondent had notice of his deficient disclosure status, as well as of the date by which his non-filing would be turned over to Enforcement. In short, he had notice of the date by which he could take corrective action and avoid a monetary penalty. Despite that, Respondent failed to respond to the Board's notices and failed to file his SFI by the corrective deadline of June 30, 2025, that would have avoided a monetary penalty. Therefore, while Respondent's filing of his 2024 SFI on July 1, 2025, was corrective, I find that it was not sufficiently prompt to warrant mitigation of the monetary penalty.

Prompt self-reporting

The Philadelphia Code describes self-reporting as reporting of a violation to the Board of Ethics. There is no evidence in the record that Respondent at any time contacted Board staff to self-report. Thus, the evidence does not support the application of this factor to mitigate the penalty.

Other mitigating factors

Having reviewed the three enumerated mitigating factors, I now consider whether I may weigh any additional mitigating factors in recommending a penalty. Section 20-609(1)(a)(.4) authorizes the Board to consider additional factors identified by the Board through regulation. Regulation No. 3., Paragraph 3.19 does not list any additional mitigating (or aggravating) factors. However, Paragraph 3.19 of Regulation 3 states that in determining the appropriate amount of a monetary penalty, the Board may consider mitigating factors (and aggravating factors) that *include* the specific factors listed there. I interpret this language to mean that the Board may, within its sound discretion, consider other appropriate mitigating factors when assessing a penalty, and that the stated factors in the regulation are intended to guide but are not meant to be exclusive.

Accordingly, I find that Paragraph 3.19 grants the Board authority to consider additional mitigating factors in order to promote justice, consistent with the overall objectives of the Board of Ethics. *See* 1 Pa. C.S. §1928(c) (except for statutes in categories listed in (b), "provisions of a statute shall be liberally construed to effect their objects and to promote justice"). In this matter, however, Respondent has not presented any evidence or offered any arguments that would support an additional basis for mitigation of the monetary penalty. Therefore, I have not considered any additional mitigating circumstances.

VIII. Conclusion

The undisputed facts in this enforcement proceeding support a violation of Philadelphia Code Section 20-610 and Board Regulation No. 3. Therefore, I recommend that the Board of Ethics find that the Respondent has violated his 2024 SFI filing requirement. Additionally, the evidence presented does not support the application of any mitigating or aggravating factors. Accordingly, I recommend that the Board of Ethics impose upon Respondent a civil monetary penalty in the amount of $1,000 for his violation of Philadelphia Code Section 20-610.

Respectfully submitted,

Date: March 27, 2026

/s/ Louis S. Rulli, Esq.
Louis S. Rulli, Esq.
Hearing Officer

CITY OF PHILADELPHIA

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April 24, 2026

Via U.S. mail & email

Otis Bullock
[redacted]
otisbullock@gpca-phila.org

RE: *Executive Director v. Bullock*, Matter No. 2510ET21

Dear Mr. Bullock,

Enclosed are the Board's Final Determination and Order in the above-captioned matter.

The Board having issued the Final Determination, the confidentiality restrictions imposed by the Ethics Code and Board Regulation No. 2 no longer apply. The Board will announce the Final Determination by press release some time in the coming days and at the Board's public meeting on May 27, 2026.

In addition, we will post the administrative record from this matter on the Board's website. Before doing so, we will redact the filings and documents to the extent legally required, including the Final Determination and Hearing Officer's Recommendation. Public posting of the record may be delayed due to ongoing updates to the City's web platform.

Please let me know if you have any questions.

Very truly yours,

/s/ Jordana L. Greenwald
Jordana L. Greenwald
General Counsel
City of Philadelphia Board of Ethics

Cc: J. Shane Creamer, Jr., Esq. (via email only)
Richard Barzaga, Esq. (via email only)
Erin Ambrose, Esq. (via email only)